

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken— to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DEC

Date: 5/18/2026

Bill Number: HB25

Short Title (as it appears on BASIS): Disposable Food Service Ware

What action do you recommend the Governor take?

Select one.

☐ SIGN ☐ VETO ☒ LWOS

Action Justification – Why do you recommend the above action?

Please be specific.

Allowing the bill to become law without signature recognizes the public support for the legislation and the inclusion of municipal flexibility provisions, while also acknowledging the implementation considerations associated with the bill.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

House Bill 25 would amend AS 17.20 by adding AS 17.20.035 to reduce the use of polystyrene foam ("Styrofoam") disposable food containers in Alaska. The bill restricts use by restaurants and State of Alaska meal service operations, while allowing certain exemptions, such as for undue hardship or disaster declarations. Amendments adopted in 2025 authorized the department to adopt regulations allowing restaurants to use customer-provided containers and allowed existing polystyrene containers purchased before the effective date to continue being used.

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Additional amendments adopted in April 2026 extended the effective date to January 1, 2027, removed the exemption for reusable polystyrene coolers and ice chests, and expanded the definition of “restaurant” to include coffee kiosks, grocery delis, hospitals and school food operations, caterers, concessions, and hybrid food service businesses. A May 2026 amendment authorizes municipalities to adopt ordinances allowing restaurants to serve prepared food in polystyrene foam disposable food service ware. The amendment also clarifies that the section’s restrictions would not apply within municipalities that have adopted such an ordinance.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Section 1: Adds a new section to AS 17.20 (The Alaska Food, Drug, and Cosmetic Act), AS 17.20.035 – Disposable food service ware, which prohibits the state from using or purchasing polystyrene foam disposable food service ware, as well as prohibiting restaurants from providing food in these kinds of containers. The bill also allows the department to adopt regulations that would allow a restaurant to put prepared food into a clean container that is provided by the customer. There are exemptions that are outlined in the bill, and definitions are provided. The bill authorizes municipalities to adopt ordinances allowing restaurants to provide prepared food in polystyrene foam disposable food service ware.

Section 2: Adds a new section to the uncodified law of the State of Alaska titled Transition: Polystyrene Products that would allow the state and restaurants to use polystyrene foam disposable food service ware that was purchased prior to the bill effective date.

Section 3: Effective date of January 1, 2027

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

N\A

Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

Opposition:

- American Chemistry Council, Lindsay Stovall, Director of State and Regulatory Affairs, (916)448-2581, Lindsay_Stovall@americanchemistry.com

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- EPS Industry Alliance, Walter Reiter, President, (800)607-3772, info@epsindustry.org
- Plastics Industry Association, Danielle Fortunato, Regional Director of State Government Affairs, (202)974-5200
- Alaska Cabaret, Hotel, Restaurant, and Retailers Association (AlaskaCHARR), Sarah Oates Harlow, President & CEO, (907)274-8133, sharlow@alaskacharr.com
- Foodservice Packaging Institute, Carol Patterson, Vice President, (703)592-9899, cpatterson@fpi.org

Support:

- Alaska Community Action on Toxins (ACAT)
- Green Alaska Solutions, Deborah O’Leary, Owner, (907)351-4195, deborah@greenalaskasolution.com
- Defenders of Wildlife, Ragen Davey Richards, Alaska Marine Representative, (202)682-9400
- Oceana, Jamie Karnik, Pacific Communication Manager
- City of Bethel, Lisa Strickler
- Blue Market, Jennifer Gordon, Co-Founder, (907)240-0206, Jen@bluemarketalaska.com
- Papaya Tree LLC, Owner
- Whittier Chamber of Commerce, Stephanie Carlson, Administrator
- Chugach Mountain Roasters, Lyle Kass
- City of Gustavus, Sally McLaughlin, Mayor, (907)697-2451
- Stand Up Alaska, Erin Jackson, Executive Director, (907)227-6926
- Mindful Living Collective, Willow King, CEO, (907)252-5977, mindfullivingcollective@gmail.com
- Valley Community for Recycling Solutions (VCRS), Tamara Boeve, Executive Director, (907)745-5544
- Mat-Su Zero Waste Coalition, Carol Montgomery, Chair of the Plastic Bag Committee
- Turkey Red, Alex Papasavas, Owner, (907)355-3242
- American Sustainable Business Network, Martin Wolf, Advisor
- Numerous (12+) redacted and unredacted letters of support from residents

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

N/A

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Commissioner's Signature:  Date: 5/18/2026

I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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